



CHAPTER xxxviii.

An Act to extend the powers of the Conservators of the River Medway to make further provisions with reference to the tolls and charges to be taken by the Conservators to provide for the appointment of additional Conservators and for other purposes. A.D. 1919.
[31st July 1919.]

WHEREAS by the Medway Conservancy Act 1881 the Conservators of the River Medway (therein and herein-after called "the Conservators") were incorporated and authorised to exercise various powers for or connected with the conservancy regulation management and improvement of part of the River Medway : 44 & 45 Vict.
c. clxxiv.

And whereas the part of the River Medway within the jurisdiction of the Conservators and to which the Act of 1881 applies is defined by section 4 of the Act of 1881 and shown on the map or plan therein referred to and is in the Act of 1881 and herein-after referred to as "the river":

And whereas by virtue of the Act of 1881 the Conservators are seventeen in number whereof six represent the mayor aldermen and citizens of the city of Rochester two represent the borough of Chatham formerly the district of the local board of health for the district of Chatham Extra six are elected by importers exporters and consignees of goods two are appointed by the Admiralty and one is appointed by the company of proprietors of the lower navigation of the River Medway:

And whereas by virtue of the Act of 1881 the bed soil and shores of the river and all encroachments embankments and enclosures therefrom and thereupon are vested in the Conservators subject to certain exceptions and provisoes therein mentioned:

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And whereas by the Act of 1881 the Conservators are empowered (among other things) from time to time as they shall deem necessary for the convenience of the public to erect at any convenient places piers or landing-places and are also empowered to take certain tolls rates dues and charges mentioned in section 93 of that Act on steam or other passage vessels embarking passengers or goods at or from such piers or landing-places and to take certain river tolls rates dues and charges on vessels mentioned in section 95 and the Third Schedule to that Act:

And whereas the expenses involved in the execution by the Conservators of their powers under the Act of 1881 have greatly increased and in order to provide for the same and to improve the facilities afforded by the river and meet the public requirements it will be necessary for the Conservators to expend further moneys:

And whereas the tolls rates dues and charges authorised by the Act of 1881 are inadequate and it is expedient that for the purpose of providing for the expenses of executing the said powers under the Act of 1881 and the powers of this Act the Conservators should be authorised to take increased and additional tolls rates dues rents and charges as in this Act provided:

And whereas with a view to improving the facilities afforded by the river and meeting the requirements of the traffic resorting and which it is anticipated will resort thereto and for the general benefit and advantage of the various bodies and persons interested in the river and the population in the neighbourhood thereof or served thereby it is expedient that the general powers of the Conservators with respect to the provision and maintenance of works and conveniences should be enlarged and that the Conservators should be empowered to acquire land construct wharves warehouses and other works and exercise other powers as in this Act provided:

And whereas with a view to developing the facilities provided by the river and the works connected therewith it is expedient that the Conservators should be empowered out of their funds to contribute or lend money for the advancement of dock railway and wharf undertakings in connexion with the river as in this Act provided:

And whereas it is expedient to confer upon the Conservators further powers of borrowing money as in this Act provided:

[9 & 10 GEO. 5.] *Medway Conservancy Act, 1919.* [Ch. xxxviii.]

And whereas it is expedient that the number of the Conservators should be increased and that the borough of Gillingham should be represented upon the body of the Conservators : A.D. 1919.

And whereas it is expedient that the other provisions in this Act contained should be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

1. This Act may be cited as the *Medway Conservancy Act 1919* and the *Medway Conservancy Act, 1881* and this Act may be cited together as the *Medway Conservancy Acts 1881 and 1919.* Short and collective titles.

2. The following enactments (as far as the same are applicable for the purposes of and not varied by or inconsistent with this Act) shall be incorporated with this Act (that is to say) :— Incorporation of Acts.

The provisions of the *Commissioners Clauses Act 1847* with respect to the following matters :—

The contracts to be entered into and the deeds to be executed by the commissioners ;

The liabilities of the commissioners and legal proceedings by or against the commissioners ;

The appointment and accountability of the officers of the commissioners ;

The mortgages to be executed by the commissioners ;

The accounts to be kept by the commissioners ;

Giving notices and orders ; and

Access to the special Act ;

the provisions of that Act being construed as if the expression "the Conservators" had been inserted therein instead of the expression "the commissioners" :

The provisions of the *Railways Clauses Consolidation Act 1845* with respect to the recovery of damages not

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pecially provided for and of penalties and to the determination of any other matter referred to justices the provisions of that Act being construed as if the expression "the Conservators" had been inserted therein instead of the expression "the company":

The following provisions of the Harbours Docks and Piers Clauses Act 1847 (namely) Sections 14 15 24 28 34 to 48 (both inclusive) 99 and 100 the provisions of that Act being construed as if the word "Conservators" had been inserted instead of the expression "the undertakers" and as if the expression "within the limits of the Act of 1881" had been inserted therein instead of the expression "within the limits of the harbour dock or pier" and the expression "the special Act" in the provisions of that Act incorporated with this Act shall mean and apply to this Act:

Provided that for the purpose of such incorporation the following expressions in section 28 of the Harbours Docks and Piers Clauses Act 1847 shall have the following respective meanings (that is to say):—

The expressions "packet boat" and "Post Office packet" shall mean respectively a vessel employed by or under the Post Office for the conveyance under contract of postal packets as defined by the Post Office Act 1908 and the expression "Post Office bag of letters" shall mean a mail bag as defined by the same Act but nothing in the Harbours Docks and Piers Clauses Act 1847 or in this Act shall extend to exempt from tolls rates or duties any such vessel as aforesaid if she also conveys for hire passengers or goods.

The Lands Clauses Acts except so much and such parts of the Lands Clauses Consolidation Act 1845 as relate to the purchase and taking of lands otherwise than by agreement and to the entry upon lands by the promoters of the undertaking and to the sale of superfluous land and in construing the said Acts the Conservators shall be deemed the promoters of the undertaking.

Interpreta-
tion.

3.—(1) In this Act unless the subject or context otherwise requires the expression "the Act of 1881" means the Medway

[9 & 10 GEO. 5.] *Medway Conservancy Act*, 1919. [Ch. xxxviii.]

Conservancy Act 1881 the expression "the Conservators" means the Conservators of the River Medway the words "shore" and "goods" have the meanings respectively assigned to them in section 3 (Interpretation of terms) of the Act of 1881 the word "tolls" includes tolls rates dues rents and charges and the word "vessel" means any ship lighter keel barge boat wherry raft or craft or any other kind of vessel whatsoever whether navigated by steam or otherwise and includes a motorboat the expression "the river" means that part of the River Medway to which the Act of 1881 applies and which is defined by section 4 (Application of Act to part of River Medway) of that Act and is shown on the map or plan referred to in that section. A.D. 1919.

(2) Words terms and expressions to which meanings are assigned in enactments incorporated with this Act or which have therein special meanings have in this Act the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act and for the purposes of this Act in any enactment incorporated with this Act the term "court of competent jurisdiction" shall have effect as if the debt or demand with respect to which it is used was a simple contract debt and not a debt or demand created by statute and the term "superior court" shall include any court of competent jurisdiction.

4.—(1) As from the expiration of three months after the passing of this Act the Conservators may from time to time in respect of the vessels purposes services matters and things mentioned or referred to in the schedule to this Act demand and take any tolls not exceeding the tolls respectively specified in that schedule subject to the exemptions qualifications and rebates in that schedule provided. Tolls.

(2) The said tolls shall be paid at such times and places and to such persons as the Conservators may appoint.

(3) As from the expiration of three months after the passing of this Act section 93 (Conservators may take tolls from steamboats using the piers) and section 95 (River tolls) and the Third Schedule to the Act of 1881 shall be and the same are hereby repealed but without prejudice to the right of the Conservators to recover any tolls leviable under the said sections or either of them and then remaining due and unpaid to the Conservators.

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(4) Subject to the provisions of this Act the unrepealed provisions of the Act of 1881 relating to tolls except the provisions of section 2 of that Act with respect to the incorporation of certain provisions of the Harbours Docks and Piers Clauses Act 1847 shall apply mutatis mutandis to and with respect to the tolls by this section authorised as fully and effectually as they applied to and with respect to the tolls by that Act authorised.

Ascertain-
ment of
tonnage of
vessels.

5. For the purpose of ascertaining the tolls payable upon vessels in respect of tonnage under this Act—

- (1) The tonnage of British vessels duly registered according to law shall be ascertained according to the certified tonnage in the register of such vessels:
- (2) The tonnage of any vessel which shall not have been so registered may if the Conservators so determine be ascertained by adopting any figure of tonnage placed upon the same by the Port of London Authority the Board of Trade or any other recognised authority approved by the Conservators and where no such figure is adopted shall be ascertained as nearly as may be practicable in accordance with the rules of admeasurement for the time being established by law for regulating the admeasurement of the tonnage and burthen of the merchant shipping of the United Kingdom and any difference between the Conservators and the owner or master of such vessel shall be determined by an independent person to be nominated by the Board of Trade:
- (3) The expression "register ton" when used in this Act shall mean a ton of the tonnage so ascertained:
- (4) As from the expiration of three months after the passing of this Act section 94 (Tonnage of registered British vessels to be ascertained by register—that of other vessels by admeasurement) of the Act of 1881 shall be and the same is hereby repealed.

General
powers to
Conserva-
tors to pro-
vide wharves

6. In addition to the exercise by the Conservators of the powers conferred upon them by the Act of 1881 it shall be lawful for the Conservators from time to time as they shall deem necessary for the convenience of the public to make erect

construct maintain improve enlarge and renew upon any lands for the time being vested in or belonging to them wharves embankments walls warehouses shops rooms sheds buildings yards roads sewers drains bridges basins channels stairs stages sluices gates locks weighing-machines rails turntables sidings mooring-posts cranes lifts buoys beacons moorings and other works and conveniences of such form and construction as they shall deem most advantageous to the public and causing the least obstruction to the navigation of the river and also from time to time to alter and vary the form and construction of such works and conveniences and to shut up or take away and remove the same or any of them without being obliged to erect or provide any other works or conveniences in lieu of any so shut up removed or taken away.

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warehouses
and other
conveni-
ences.

7. Any works or conveniences constructed by the Conservators under the powers of this Act shall be deemed part of the existing undertaking of the Conservators and subject to the provisions of this Act the Conservators may in respect thereof exercise any powers vested in them in connexion with their existing undertaking.

Works and
conveniences
to be part
of existing
undertaking.

8. The Conservators may utilise for any of the purposes of this Act any land which they have acquired or may hereafter acquire under the powers conferred upon them by the Act of 1881 and they may for those purposes or for any of the purposes of the Act of 1881 purchase from any person who may be willing to sell the same any land not exceeding in the whole twenty acres in addition to the land which they are already authorised by the Act of 1881 to acquire.

Power to
acquire and
utilise lands
for purposes
of Act.

9.—(1) The Conservators may undertake the warehousing of goods and may manage work and use any warehouses sheds and other buildings provided by them under this Act for the reception and deposit of goods.

Power to
carry on
warehouses
&c.

(2) If the Treasury or the Commissioners of His Majesty's Customs and Excise be pleased to approve as bonded warehouses any of the warehouses of the Conservators provided under this Act the Conservators may hold use and manage the same as bonded warehouses.

(3) The Conservators may enter into or give such bond or security under their common seal as the Treasury or the Commissioners of His Majesty's Customs and Excise may approve

A.D. 1919. — and as may at any time be required by the laws which for the time being shall relate to bonded warehouses and every such bond or security so to be given as aforesaid shall be binding upon the Conservators.

Power to
lease ware-
houses &c.

10. The Conservators may lease or grant the use or occupation of any warehouses shops rooms sheds buildings wharves quays yards cranes machines conveniences and appliances provided by them under or for the purposes of this Act to any person or to any particular trade or business at such rents or for such consideration (pecuniary or otherwise) and upon such terms and conditions and for such period as shall be agreed upon between the Conservators and the persons taking or using the same.

Conserva-
tors may
issue certifi-
cates of
goods and
delivery
warrants.

11.—(1) The Conservators from time to time at the request of any person warehousing or depositing any goods in any warehouse or upon or in any of the quays wharves or yards of the Conservators provided under this Act and specially appropriated for the purpose or entitled to any goods so warehoused or deposited may if the Conservators think fit issue and deliver to him a certificate in a form approved by the Conservators of the goods so warehoused or deposited or a warrant in a form approved by the Conservators for the delivery of goods so warehoused or deposited or any part thereof to be respectively specified in the warrant.

(2) No such warrant for delivery shall be given unless and until all liens and claims for freight and all other liens and claims whatsoever to which the goods were liable while on board any vessel and before the warehousing or depositing of the same and of which the Conservators have notice in writing and all rates charges and expenses payable to the Conservators with respect to the warehousing or depositing of the goods or for services performed by the Conservators in respect thereof shall have been paid or discharged.

(3) Every such warrant for delivery shall be transferable by endorsement and shall entitle the person named therein or the last endorsee thereof named in the endorsement to the goods specified therein and the goods so specified shall for all purposes be deemed his property.

(4) No notice to retain any goods for payment of freight due for goods landed from any vessel in or upon any wharf quay yard or premises of the Conservators shall be available

unless the notice be in writing and be given to the Conservators before the issue by them of the warrant for the delivery of the goods. A.D. 1919.

12. All warrants for delivery certificates transfer certificates and other documents relating to goods in the custody of the Conservators being signed and issued by any officer duly authorised in that behalf shall be effectual in law and binding on the Conservators and all other parties interested without any other signature and without any seal. Authentication of delivery warrants.

13. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Conservators may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of any such lands or interests therein and may do and execute any deed act or thing proper for effecting any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange. Power to retain sell &c. lands.

14.—(1) Any harbour-master of the Conservators may give directions for regulating the manner in which any vessel within the river shall discharge its cargo or any part thereof or shall deliver ballast. Discharging of cargo and ballast from vessels.

(2) The master of every such vessel shall regulate such vessel according to the directions of such harbour-master made in conformity with this Act and any master of any vessel who after notice in writing signed by such harbour-master of any such direction served upon him shall not forthwith regulate such vessel according to such direction shall be liable to a penalty not exceeding five pounds.

(3) Nothing in this Act contained shall authorise the harbour-master to do or cause to be done any act in any way repugnant to or inconsistent with any law relating to the Customs or any regulation of the Commissioners of Customs and Excise.

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Supply of
water and
hydraulic
power.

15. The Conservators may supply water and hydraulic power for the use of vessels frequenting or using the river and for the general purposes of the undertaking of the Conservators and they may enter into and carry into effect agreements with any person with respect to such supply upon such terms and conditions as the Conservators may think fit.

Power to
contribute to
other under-
takings.

16. The Conservators may out of any of their funds or any money raised by them from time to time contribute or lend any sum or sums of money not exceeding in the whole thirty thousand pounds for the purposes of the undertaking of any dock railway or wharf company in connexion with the river and for that purpose may take and hold shares stock debentures debenture stock mortgages or other securities of any such company for the whole or any part of any sums so contributed or lent and may sell transfer exchange surrender or otherwise deal with or dispose of any such securities.

Power for
Conservators
and other
bodies to
make agree-
ments.

17. The Conservators on the one hand and any county council local or road authority commissioners of sewers railway company or dock or port authority or company on the other hand may enter into and carry into effect agreements with respect to all or any of the purposes of this Act.

Power to
apply funds
and to
borrow for
purposes of
this Act and
Act of 1881.

18. For the purpose of paying the costs charges and expenses of this Act as herein-after defined and for the purpose of defraying the expenses of carrying this Act into execution the Conservators may apply any of their funds and any moneys raised or hereafter to be raised by them by borrowing under the powers conferred by the Act of 1881 and the Conservators may for the said purposes and for the purpose of defraying the expenses of carrying the Act of 1881 into execution borrow and take up at interest in addition to the moneys which they are authorised by the Act of 1881 to borrow any sum or sums not exceeding in the whole sixty thousand pounds on the credit of their undertaking and property and the tolls fines and profits by this Act and the Act of 1881 given to or vested in or authorised to be received by the Conservators and in the event of all or any part of such moneys being repaid by the Conservators to reborrow the same and so toties quoties but so nevertheless that there shall not be owing on the security aforesaid under the authority of this Act any more than the said sum of sixty thousand pounds in the whole at any one time and for securing the repayment of the moneys so to be borrowed with interest

the Conservators may assign over the said undertaking property and tolls fines and profits or any of them or any part thereof respectively to the person who shall lend or advance such money or his trustees as a security for the repayment of the money so to be borrowed together with interest for the same. A.D. 1919.

19. The provisions of the following sections of the Act of 1881 (that is to say):—

Section 144 (Arrears may be enforced by appointment of a receiver);

Section 145 (Sinking fund to be provided sinking fund);

Section 146 (Annual return to Board of Trade with respect to sinking fund); and

Section 147 (Application of money borrowed);

shall apply to and with respect to the borrowing of money and moneys borrowed and other moneys received on capital account under this Act as if the same were herein re-enacted Provided that the said section 145 shall for the purposes of such application be construed as if sixty years were therein substituted for sixty-five years.

20.—(1) All moneys which may be received by the Conservators from tolls and any other source or fund whatsoever under this Act (and not properly applicable as capital) shall be carried by the Conservators to the credit of the Conservancy Revenue Fund established under the Act of 1881 and the whole of the said fund shall subject to provision being made if thought fit for payment of the costs charges and expenses of this Act as herein-after defined be applicable and applied by the Conservators in carrying the Act of 1881 and this Act into execution.

(2) The provisions of section 149 (Surplus of Conservancy Revenue Fund to be applied in reduction of the moneys raised and thereafter in reduction of tolls) shall apply to and with respect to moneys received moneys raised and moneys owing under this Act and to and with respect to the tolls by this Act given to vested in or authorised to be received by the Conservators as if the same were respectively moneys received moneys raised and moneys owing under the Act of 1881 and tolls and dues by the Act of 1881 authorised to be taken.

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(3) The provisions of section 150 (Accounts to be yearly laid before Parliament) shall apply to moneys received and applied by virtue of this Act as if the same were received and applied by virtue of the Act of 1881.

Increase of
number of
Conserva-
tors.

21.—(1) As from the third Wednesday in the month of November one thousand nine hundred and nineteen the number of the Conservators shall be increased from seventeen to nineteen and section 5 (Constitution of Conservators of River Medway) of the Act of 1881 shall be read and have effect accordingly.

(2) The two additional Conservators shall be appointed by the council of the borough of Gillingham to represent that borough and are in this section referred to as "Gillingham Conservators."

(3) No person shall be qualified to be a Gillingham Conservator unless he is a member of the council of the borough of Gillingham or possessed of the requisite qualification to be a member of that council and no member of the council of the city of Rochester or of the council of the borough of Chatham shall be qualified to be a Gillingham Conservator.

(4) The first appointment of Gillingham Conservators shall be made on the third Wednesday in the month of November one thousand nine hundred and nineteen at a meeting of the council of the said borough of Gillingham.

(5) Subsequent appointments of Gillingham Conservators shall be made on the third Wednesday in the month of November in every subsequent third year after such first appointment as aforesaid.

(6) Each of the Gillingham Conservators shall continue in office for three years if he shall so long live and continue qualified and every retiring Gillingham Conservator shall if qualified be eligible for reappointment.

(7) In the event of a vacancy occurring in the case of a Gillingham Conservator occasioned by death resignation removal disqualification or otherwise before the expiration of his term of office such vacancy shall be filled up with all convenient speed by the appointment of another person as a Gillingham Conservator in accordance so far as may be with the provisions of this section but the person so appointed shall hold office so long

only as the Conservator in whose stead he is appointed would have been entitled to continue in office. A.D. 1919.

22. As from the passing of this Act section 14 of the Act of 1881 (Appointment of Local Board Conservators) shall be read and have effect as if in lieu of the words "at the first ordinary meeting of the local board in the month of January in every subsequent third year" the words "on the third Wednesday in the month of November in every subsequent third year" had been therein inserted. Date of appointment of Conservators by Chatham Corporation.

23. Notwithstanding anything in this Act the provisions of sections 86 136 137 and 153 to 170 inclusive of the Act of 1881 shall apply to and with respect to the provisions and purposes of this Act as if the same were herein re-enacted Provided that in construing section 160 (Conservators not to levy tolls in respect of Sheerness Pier except those specified in Third Schedule) for the purpose of its application to this Act the schedule to this Act shall be deemed to be substituted for the Third Schedule to the Act of 1881. Saving for various authorities companies and persons.

24. All costs charges and expenses preliminary to and of and incidental to the preparing applying for and obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Conservators out of the Conservancy Revenue Fund or any other funds of the Conservators or out of moneys borrowed or to be borrowed under the powers of the Act of 1881 or this Act. Costs of Act.

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The SCHEDULE in the foregoing Act referred to.

PART I.

CARGO VESSELS.

(A) IMPORT AND RIVER DUES.

s. d.

For every vessel entering the river or trading within the river and carrying coal culm foundry coke patent fuel or fuel oil per register ton in respect of each voyage or occasion any sum not exceeding - - - - - 0 6

For every vessel entering the river or trading within the river and carrying any cargo other than coal culm foundry coke patent fuel or fuel oil per register ton in respect of each voyage or occasion any sum not exceeding—

In the case of a vessel whose registered tonnage is under 500 tons - - - - - 0 6

In the case of a vessel whose registered tonnage is 500 tons or over but under 1,000 tons - - - - - 0 9

In the case of a vessel whose registered tonnage is 1000 tons or over - - - - - 1 0

(B) EXPORT DUES.

For every vessel leaving the river seaward carrying either (a) coal culm foundry coke patent fuel or fuel oil or (b) any cargo other than as specified in paragraph (a) hereof in respect of each voyage or occasion per register ton any sum not exceeding one half of the corresponding import and river dues under heading (A) of this part of this schedule specified.

(C) EXEMPTIONS QUALIFICATIONS AND REBATES FROM THE ABOVE
IMPORT RIVER AND EXPORT DUES.

1. A vessel carrying any cargo other than coal culm foundry coke patent fuel or fuel oil to or from any place on the River Medway from or to any place not being seaward of an imaginary straight line drawn from the pilot mark at the entrance of Havengore Creek in the county of Essex to the Land's End at Warden Point in the Isle of Sheppey in the county of Kent shall be exempt from the import river and export dues under headings (A) and (B) of this part of this schedule.

2. A vessel carrying coal culm foundry coke patent fuel or fuel oil which has been transhipped from another vessel within the river and discharging the same at any place within the river shall be exempt from river dues under heading (A) of this part of this schedule. A.D. 1919.

3. A vessel entering or leaving the river carrying any cargo other than coal culm foundry coke patent fuel or fuel oil from or to any place in the British Islands seaward of the line drawn from Havengore Creek to Warden Point shall pay one half only of the import river or export dues (as the case may be) to which such vessel would otherwise be liable according to the dues for the time being in force under headings (A) and (B) of this part of this schedule.

4. A vessel carrying any cargo but not more than half laden shall pay one half only of the import river or export dues (as the case may be) to which such vessel would otherwise be liable according to the dues for the time being in force under headings (A) and (B) of this part of this schedule.

5. A vessel carrying any cargo which after entering the river from seaward and discharging part of its cargo leaves the river seaward while still carrying more than one half of the cargo with which it entered shall be entitled to a rebate to the extent of the whole of the export dues and one half of the import and river dues to which such vessel would otherwise be liable in respect of such undischarged cargo according to the dues for the time being in force under headings (A) and (B) of this part of this schedule.

6. A vessel entering the river and carrying cargo but not fully laden shall be exempt from import and river dues if no part of such cargo is discharged and such vessel enters the river for the purpose only of taking on board additional cargo.

7. The maximum dues payable in respect of any vessel when forced by stress of weather to seek shelter in the river or which enters the river solely for the purpose of being repaired and which discharges ships or tranships no goods within the river shall be one fourth of the dues for the time being in force under headings (A) and (B) of this part of this schedule.

PART II.

PASSENGER VESSELS.

For each and every vessel using the river for the purpose of carrying passengers for hire—

s. d.

Per register ton for one day or part of a day not exceeding - - - - - 0 2

And for any longer period at such less rate as the Conservators may think fit.

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PART III.

ANNUAL TONNAGE DUES ON BARGES &c.

The Conservators may in addition to the dues prescribed by Parts I. and IV. of this schedule demand and take in respect of vessels using the river dues not exceeding the dues herein-after prescribed (that is to say) :—

	£	s.	d.
(A) in the case of a barge lighter or other like craft per register ton - - - - -	0	0	6
(B) in the case of a tug or hoy the sum of - - - - -	5	0	0
(C) in the case of a steam barge (which expression includes a lighter barge or other like craft for carrying goods propelled by mechanical power) in addition to the dues payable under heading (A) the sum of - - - - -	2	0	0
(D) in the case of a pleasure yacht whose registered tonnage is 10 tons or over (not being a vessel carrying passengers for hire) per register ton - - - - -	0	0	6

The tonnage dues prescribed under this part of this schedule shall in each case cover a period of one year from the date of payment.

PART IV.

ANCHORAGE HARBOURAGE AND MOORINGS.

ANCHORAGE.

	£	s.	d.
For each and every pleasure yacht whose register tonnage is 10 tons or over (not being a vessel carrying passengers for hire) and for each and every other vessel whose register tonnage is 46 tons or over entering the river (whether anchoring or not) for each time of entry not exceeding - - - - -	0	2	0

Or for such yacht or vessel entering more than 25 times within any year from January 1st to December 31st at such less rate as the Conservators may think fit.

HARBOURAGE.

For each and every vessel anchored and moored within the river for any period exceeding two weeks at the rate per registered ton per month of not exceeding - - - - -	0	0	3
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MOORINGS.

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£ s. d.

For each and every vessel using the moorings of the Conservators not exceeding the following sums (that is to say):—

For each time of such use in the case of vessels whose registered tonnage—

Does not exceed 100 tons	-	-	-	-	-	0	5	0
Exceeds 100 tons but does not exceed 500 tons	-	-	-	-	-	1	0	0
Exceeds 500 tons but does not exceed 1,000 tons	-	-	-	-	-	2	0	0
Exceeds 1,000 tons but does not exceed 1,500 tons	-	-	-	-	-	3	0	0
Exceeds 1,500 tons but does not exceed 2,000 tons	-	-	-	-	-	4	0	0
Exceeds 2,000 tons	-	-	-	-	-	5	0	0

Provided that the charge for the use of moorings shall not be made in respect of any barge or lighter using moorings specially provided in Limehouse and Bridge Reaches by the Conservators for the use of barges:

Provided also that in any case where the vessel upon the occasion of the use of the moorings pays import or river dues under Part I. (A) of this schedule one half only shall be paid of the charge which would otherwise be made for the use of moorings according to the scale for the time being in force.

PART V.

WAREHOUSING AND GENERAL SERVICES.

For the use of any warehouses shops rooms sheds buildings wharves quays yards weighing-machines cranes conveniences apparatus and appliances of the Conservators and for any services not elsewhere in this schedule provided for—

Such tolls as the Conservators may think fit and as the Board of Trade may from time to time approve.

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FOR

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